



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

September 16, 2022

POLICE COMMISSIONER'S PENALTY DEPARTMENT

Re: CCRB Case No. 202103424 regarding Police Officer Jennifer Tierney, Tax No. 949730 (DADS No. 2022-26872), and Lieutenant David Sansone, Tax No. 939414 (DADS No. 2022-26869)

Dear Mr. Darche:

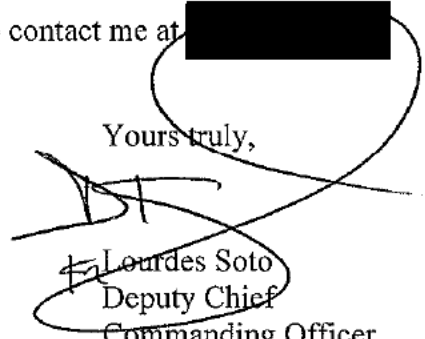
The Police Commissioner has reviewed the facts and circumstances in this matter and determined that the actions of Police Officer Tierney and Lieutenant Sansone do not warrant a disciplinary penalty in this matter. The interaction between Police Officer Tierney and the individual in crisis was captured by the officer's Body-Worn Camera ("BWC"). The recorded footage shows that the individual was in the midst of a mental health crisis and, as articulated by Police Officer Tierney, may have engaged in self-mutilation. Given these facts, and the officer's reasonable fear that the individual in crisis was a danger to himself, the decision to remove said individual to the hospital was a correct one. When Police Officer Tierney and her partner attempted to remove the individual in crisis to an awaiting ambulance, the individual resisted, which resulted in injuries to everyone involved in the individual's removal. The minimal and proportionate force used by Police Officer Tierney was therefore correctly applied.

Lieutenant Sansone was present at the scene in question and, given the circumstances and the reasonable belief that the individual in crisis was a danger to himself, correctly authorized the removal of said individual to the hospital. The decision to remove this individual through an application of measured and reasonable force was proper in this case. Similarly, Lieutenant Sansone acted correctly in instructing officers to secure the premises after the individual in crisis was removed to the hospital. The limited search of the individual's premises was performed solely to safely secure the premises and to ensure that the now-vacant apartment did not pose any hazards to others by having, *inter alia*, a running gas stove within. Thus, the limited search was not conducted to yield any evidence or contraband and was therefore not improper in this case.

Therefore, based on the foregoing, the Police Commissioner has determined that Police Officer Tierney and Lieutenant Sansone will receive no disciplinary action for the alleged violation of Patrol Guide Procedure 221-13 (Mentally Ill or Emotionally Disturbed Persons). Furthermore, Lieutenant Sansone will receive no disciplinary action for the alleged violation of Patrol Guide Procedure 304-06 (1) (Prohibited Conduct/Improper Search).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A large, stylized handwritten signature in black ink, which appears to be "L. Soto", is written over the typed name and title.

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office